

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
BRIAN CASTRO,

SUMMONS

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

against

The basis of venue is:
Plaintiff's Residence

CITY OF NEW YORK, P.O. JOSE CORDERO, P.O.
MONOLIN MOLINA and SERGEANT JOSE CABAN,

Plaintiff resides at:

Defendants,

Bronx of New York

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To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, NY
December 18, 2018

RAWLINS LAW, PLLC

/s/ Gary N. Rawlins

Gary Rawlins, Esq.

Attorney for Plaintiff

BRIAN CASTRO

777 Westchester Ave, Suite #101

White Plains, NY 10604

Tel : (212) 926-0050

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TO:

CITY OF NEW YORK
Zachary Carter, Esq.
New York City Law Department
100 Church Street
New York, New York 10007

P.O. JOSE CORDERO
32nd Precinct
250 W 135th St,
New York, NY 10030

P.O. MONOLIN MOLINA
Via 1 Police Plaza
1 Police Plaza Path,
New York, NY 10007

SERGEANT JOSE CABAN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
BRIAN CASTRO,

**VERIFIED
COMPLAINT**

Plaintiff,

against

CITY OF NEW YORK, P.O. JOSE CORDERO, P.O.
MONOLIN MOLINA and SERGEANT JOSE CABAN,
Defendants.
-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint,
respectfully alleges, upon information and belief that:

1. The Plaintiff, **BRIAN CASTRO**, at all times herein mentioned was and still is a resident of the County of Bronx and the State of New York.
2. At all times mentioned herein, Defendants **CITY OF NEW YORK, P.O. JOSE CORDERO, P.O. MONOLIN MOLINA** and others not presently known to Plaintiff (**SERGEANT JOSE CABAN**) were and still are residents of the County of Bronx the in the State of New York.
3. At all times herein mentioned, Defendant **THE CITY OF NEW YORK ("NYC")**, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

4. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff **BRIAN CASTRO** upon **NYC** in accordance with Section 50-e of the General Municipal Law.

5. That notice of claim was served on October 23, 2017.

6. Within ninety days of July 29, 2017 , a notice of claim in writing was served on behalf of Plaintiff **BRIAN CASTRO** upon **NYC**, in accordance with Section 50-e of the General Municipal Law.

7. Prior to the commencement of this action, notice of the intention of Plaintiff **BRIAN CASTRO** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon **NYC**.

8. Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.

9. A hearing pursuant to General Municipal Law 50-h was held on February 13, 2018.

10. This action is commenced within one (1) year and ninety (90) days from July 29, 2017.

11. At all relevant times, Defendants **P.O. JOSE CORDERO, MONOLIN MOLINA and SERGEANT JOSE CABAN** were employees of Defendant **CITY**, and were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.

12. The individual Defendants were acting pursuant to the authority conferred upon them by defendant police department, defendant department of corrections and defendant municipality.

13. At all times herein mentioned, Defendants **NYC** and **P.O. JOSE CORDERO Tax Reg# 945429, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN**, stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

14. Defendants **NYC** are vicariously liable for the acts of Defendants **P.O. JOSE CORDERO Tax Reg# 945429, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN**.

15. By reason of the foregoing, Plaintiff **BRIAN CASTRO** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THE FIRST CAUSE OF ACTION FOR FALSE ARREST AS AGAINST ALL DEFENDANTS

16. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

17. Plaintiff **BRIAN CASTRO** sues all Defendants in their individual capacities.

18. On July 29, 2017, Plaintiff **BRIAN CASTRO** was wrongfully, unlawfully and unjustifiably arrested, detained and deprived of his liberty against his will, and was imprisoned by defendants, their officers, agents, servants, employees, agencies and/or departments and/or at the instigation of those departments.

19. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant.

20. At all relevant times, defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **BRIAN CASTRO**.

21. On or about July 29, 2017, at approximately 7:30pm, Plaintiff **BRIAN CASTRO** was at or about the lobby entrance way of 480 St. Nicholas Avenue, New York, NY 10030, when he saw defendant **P.O. MONOLIN MOLINA** punching DAYSHON FLORES about the head and face at which point he started to videotape the officer. As the video shows, defendant **P.O. MONOLIN MOLINA** and another police officer used chokeholds and arm locks restrain Mr. Flores. **P.O. MONOLIN MOLINA** walked past a man in a red shirt who was videotaping the incident, walked past Mr. Harvey, who was also videotaping, and punched Mr. Harvey in the face, wrestled him to the ground and used force to handcuff him. The force included knees to the back and other parts of his body. The entire incident was captured by cell phone videos from multiple angles. The incident was also captured on NYCHA building videos, including the **480 St. Nick ULC Media Players a the location**. Mr. Harvey was restrained by several unknown officers and arrested by **P.O. JOSE CORDERO Tax Reg.# 945429**. He was transported to the 32nd Precinct where he was detained for approximately 4 hours, issued a desk appearance ticket and charged with PL 120.15 Menacing in the Third Degree. On July 11, 2016, all charges were dismissed and sealed.

22. Throughout this period, Plaintiff **BRIAN CASTRO** was wrongfully, unlawfully and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.

23. Defendants, their officers, agents, servant and/or employees were responsible for Plaintiff **BRIAN CASTRO** arrest, detention and imprisonment during this period of time.

24. Throughout Plaintiff **BRIAN CASTRO** imprisonment, Defendants, and their officers, agents, servants, and employees refused to give Plaintiff an opportunity to establish his innocence.

25. Defendants intended to and did in fact confine Plaintiff **BRIAN CASTRO** and physically prevented him from leaving their custody and kept him under the supervision without access to his freedom, family and home.

26. Plaintiff **BRIAN CASTRO** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.

27. At all relevant times, the unlawful, wrongful and false arrest and imprisonment of Plaintiff **BRIAN CASTRO** was without right or privilege, and unjustified and without probable or reasonable cause.

28. At no time did Defendants or their officers, agents, servants, employees, agencies and/or departments have a warrant or other legal process for the arrest, detention or imprisonment of Plaintiff **BRIAN CASTRO**.

29. On or about the time of Plaintiff **BRIAN CASTRO** unlawful arrest, criminal charges were brought against him and those same charges were later dismissed.

30. At all relevant times, the false, unlawful, and improper arrest and imprisonment of Plaintiff **BRIAN CASTRO** was forcible and against his will.

31. All of the foregoing occurred without fault or provocation on the part of Plaintiff **BRIAN CASTRO**.

32. As consequences of Defendants' wrongful actions, negligent behavior, and violation of New York State and common laws, Plaintiff **BRIAN CASTRO**:

- a. was deprived of his freedom;
- b. was incarcerated and suffered in incarceration;
- c. was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;
- d. was subjected to great physical, mental, and emotional distress, suffering and harm;
- e. was discredited in the minds of many members of the community, having his personal reputation and character injured;
- f. was prevented from attending to his necessary affairs in business during the period of his detention;
- g. was permanently impaired as to his earning ability;
- h. and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants.

33. Defendants acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward him.

34. By reason of the foregoing, Plaintiff **BRIAN CASTRO** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE ARREST AS AGAINST
ALL DEFENDANTS

35. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

36. On or about July 29, 2017, Defendants **NYC** and **P.O. JOSE CORDERO Tax Reg# 945429, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN** wrongfully, unlawfully, maliciously, and without any warrant or pretense of legal process, detained, imprisoned and confined Plaintiff **BRIAN CASTRO**, depriving Plaintiff of his liberty.

37. Plaintiff **BRIAN CASTRO** unlawful detention and arrest arose from the taking of Plaintiff into custody to be held to answer for a crime.

38. The aforementioned arrest and subsequent detention were without probable cause or any justification and were further based upon Defendants' false statements, falsified reports, falsified documents, falsified evidence and or perjured testimony.

39. By reason of Defendants' actions, Plaintiff **BRIAN CASTRO** suffered the afore-stated personal injury, was deprived of his liberty and was otherwise greatly injured.

40. By reason of the foregoing, Plaintiff **BRIAN CASTRO** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR FAILURE TO INTERVENE TO
PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS AS AGAINST
ALL DEFENDANTS

41. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

42. As a result of the above actions, Defendants **NYC** individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS** failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **BRIAN CASTRO** by defendant **OFFICERS**.

43. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICERS** displayed a deliberate indifference to Plaintiff **BRIAN CASTRO** rights to be free from unreasonable searches and seizures and excessive use of force.

44. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including **P.O. JOSE CORDERO Tax Reg# 945429, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to the plaintiff rights and physical well being.

45. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION
AGAINST DEFENDANTS NYC

46. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

47. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **BRIAN CASTRO'S** civil rights, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendant **CITY**.

48. Defendants **NYC** at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.

49. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **NYC** negligently created and caused a situation where it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrest, unlawfully imprison, unlawfully deprive innocent persons such as Plaintiff **BRIAN CASTRO** of their Constitutional rights under the New

York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.

50. Defendants **NYC** knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.

51. Defendants **NYC** were negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.

52. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants **NYC** and their agents, servants and/or employees, Plaintiff **BRIAN CASTRO** suffered the afore-stated injuries.

53. Prior to July 29, 2017, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of plaintiff's rights.

54. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York.

55. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not

require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

56. As a result of the above described policies and customs, police officers of the City of New York, including the defendant officers, believed that their actions would not be properly monitored by supervisory offers and that misconduct would not be investigated or sanctioned, but would be tolerated.

57. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein.

Wherefore, the Plaintiff requests that this Court:

- a. Award compensatory damages to Plaintiff against the Defendants, jointly and severally;
- b. Award costs of this action to the Plaintiff;
- c. Award reasonable attorney's fees and costs to the Plaintiff
- d. Award such other and further relief, as this Court may deem appropriate.

58. By reason of the foregoing, Plaintiff **BRIAN CASTRO** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

59. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

60. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **BRIAN CASTRO** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

61. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **BRIAN CASTRO** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

62. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **BRIAN CASTRO** and injury to her good name and reputation.

63. Said harm did in fact occur in this case, in that Plaintiff **BRIAN CASTRO** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

64. By reason of the foregoing, Plaintiff **BRIAN CASTRO** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES AGAINST
ALL DEFENDANTS**

65. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained in paragraphs the above with full force and effect as if each were more fully set forth herein.

66. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **BRIAN CASTRO** well being, and were based on a lack of concern and ill-will towards Plaintiff.

67. Plaintiff **BRIAN CASTRO** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS FOR FEDERAL CLAIMS

68. This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as policemen of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331.

69. Plaintiff asserts a Monell Claim against the City of New York as prior to July 29, 2017, the City of New York, the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Harvey's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen's complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The respondent's agencies did not require appropriate in-service training or retraining of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others. As a result of the above described policies and customs, police officers of the City of New York, including the respondent officers, believed that their actions would not be properly monitored by supervisors and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of policy makers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Claimant's right alleged herein. **BRIAN CASTRO** was injured by reason of the negligence, recklessness, careless, and malicious prosecution perpetrated by each and every one of the respondents involved

individually and jointly, their agents, servants employees and/or licensees in the control, supervision, hiring and training of the officers and employees who were deliberately indifferent to Mr. Harvey's civil rights and rights under his employment contract.

70. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of plaintiff's rights.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AND
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

71. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

72. Plaintiff **BRIAN CASTRO** sues all Defendants in their capacities.

73. On or about July 29, 2017, at approximately 7:30pm, Plaintiff **BRIAN CASTRO** was On or about July 29, 2017, at approximately 11:40pm, Claimant Brian Castro was in his vehicle with his wife, who was driving, and child at or about 400 Brook Avenue, Bronx, NY behind an unmarked car. The unmarked car slammed its brakes causing Mr. Castro to beep his horn. The unmarked car let Mr. Castro's vehicle pass before turning on its siren and lights to pull Mr. Castro and his wife over. Two officers approached the car – one on each side. P.O. JOSE CORDERO Tax Reg. #956547 asked Mr. Castro's wife for license and registration. Mr. Castro then proceeded to hand his PBA card to SERGEANT JOHN DOE who threw it back in Claimant's face. SERGEANT JOHN DOE pulled Mr. Castro out the car, searched him, verbally and physically assaulted him and put him in the cop car and brought him to PSA 7. SERGEANT JOHN DOE kept tightening the handcuffs causing his hands to swell. Mr. Castro was in custody for approximately 5 hours before being released with two

summonses and a Desk Appearance The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

74. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **BRIAN CASTRO**.

AS AND FOR A SECOND CAUSE OF ACTION
FOR EXCESSIVE FORCE PURSUANT TO 1983

75. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

76. On or about July 29, 2017, Defendants **P.O. JOSE CORDERO Tax Reg# 945429, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN** used excessive force in handling the Plaintiff.

77. Solely as a result of Defendants **P.O. JOSE CORDERO Tax Reg# 945429, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN's** negligence, Plaintiff **BRIAN CASTRO** was caused to suffer severe and serious personal injuries to mind and body, further, that Plaintiff was subjected to great physical pain, mental anguish, embarrassment, extreme shock and nervousness.

78. The amount of force used to apprehend Plaintiff was unjustified.

79. By reason of the foregoing, Harvey's civil rights were violated.

80. Plaintiff **BRIAN CASTRO** was severely injured and damage which sustained her to suffer from severe nervous shock and mental anguish, great physical pain and emotionally damaged some of which injuries are believed to be permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such

injuries; Plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; Plaintiff will be unable to pursue her usual duties with the same degree of efficiency as prior to this accident, all to Plaintiff's great damage.

81. Due to Defendants **P.O. JOSE CORDERO Tax Reg# 945429, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN's** negligence, Plaintiff **BRIAN CASTRO** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT
IN VIOLATION OF HIS CONSTITUTIONAL RIGHTS**

82. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained above as if fully set forth herein.

83. Defendants **P.O. JOSE CORDERO Tax Reg# 945429, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN** caused Plaintiff to apprehend and/or fear unfriendly contact.

84. A reasonable person in the same circumstances as Plaintiff would have apprehended and/ or feared unfriendly contact.

85. Defendants **P.O. JOSE CORDERO Tax Reg# 945429, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN** assaulted Plaintiff in violation of his civil rights.

86. Due to the Defendants' assault, Plaintiff **BRIAN CASTRO** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND SUPERVISION

87. Plaintiff repeats and re-iterates each and every allegation above as if set forth at length herein.

88. Prior to on or about July 29, 2017, Defendants **NYC, NYPD, and CITY OF NEW YORK** knew or should have known Defendants **P.O. JOSE CORDERO, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN** be unruly and to verbally threaten and to harass other human beings.

89. That defendants **NYC, NYPD, and CITY OF NEW YORK** negligently hired and trained **P.O. JOSE CORDERO, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN** negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.

90. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur expenses for medical care and attention; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR EGREGIOUS CONDUCT

91. That as a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

92. Plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

93. The acts of **NYC, NYPD, CITY OF NEW YORK and P.O. JOSE CORDERO, P.O. MONOLIN MOLINA and SERGEANT JOSE CABAN** complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff, but did so out of anger fueled from road rage.

94. Plaintiff was caused to sustain serious injuries and to suffer pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

95. That as a result of the foregoing, Plaintiff **BRIAN CASTRO** seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

96. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

97. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **BRIAN CASTRO** by defendant **OFFICERS**.

98. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICERS**, displayed a deliberate

indifference to Plaintiff **BRIAN CASTRO** rights to be free from unreasonable searches and seizures and excessive use of force.

99. As a result of the foregoing, Defendants NYC individually and/or vicariously by and through its agents servants, and/or employees, including **OFFICERS** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

100. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

101. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein

102. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **BRIAN CASTRO** protestations, manhandling, false arrest, prolonged captivity, intimidation, public humiliation and malicious prosecution of Plaintiff.

103. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **BRIAN CASTRO** without any further investigation of the incident. Defendants knew or had reasons to know

that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

104. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **BRIAN CASTRO** and injury to his good name and reputation.

105. Said harm did in fact occur in this case, in that Plaintiff **BRIAN CASTRO** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

106. By reason of the foregoing, Plaintiff **BRIAN CASTRO** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

107. Plaintiff **BRIAN CASTRO** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein.

108. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff well being, and were based on a lack of concern and ill-will towards Plaintiff.

109. Plaintiff **BRIAN CASTRO** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: White Plains, NY
December 18, 2018

RAWLINS LAW, PLLC

/s/ Gary N. Rawlins

Gary Rawlins, Esq.

Attorney for Plaintiff

BRIAN CASTRO

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P.O. MONOLIN MOLINA

Via 1 Police Plaza

1 Police Plaza Path,

New York, NY 10007

SERGEANT JOSE CABAN

ATTORNEY'S VERIFICATION

Gary N. Rawlins, an attorney admitted to practice in the Courts of the State, and attorney for Plaintiff states:

That your affirmant has read the foregoing instrument and knows the contents thereof; that the same is true to your affirmant's own knowledge except as to the matters which are stated therein to be alleged on information and belief, and as to those matters your affirmant believes them to be true. The source of your affirmant's information and belief is an investigation made with respect to the facts in this action.

That the reason this Verification is made by affirmant and not by the Plaintiff is because the Plaintiff does not reside within the county where I maintain my Office.

The undersigned affirms that the foregoing statement is true, under penalties of perjury.

Date: White Plains, NY
December 18, 2018

Respectfully Submitted,

/s/ *Gary Rawlins*
Gary N. Rawlins

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
BRIAN CASTRO,

**SUMMONS and VERIFIED
COMPLAINT**

Plaintiff,

against

CITY OF NEW YORK, P.O. JOSE CORDERO Tax Reg# 945429, P.O.
MONOLIN MOLINA and SERGEANT JOSE CABAN,

Defendants,

-----X

/s/ Gary Rawlins

RAWLINS LAW, PLLC
Attorney for Plaintiff
777 Westchester Ave, Suite #101
White Plains, NY 10604
P:(212) 926-0050
F:(347)332-1592

TO:

CITY OF NEW YORK
Zachary Carter
New York City Law Department
100 Church Street
New York, New York 10007

P.O. JOSE CORDERO Tax Reg.#945429
32nd Precinct
250 W 135th St,
New York, NY 10030

P.O. MONOLIN MOLINA
Via 1 Police Plaza
1 Police Plaza Path,
New York, NY 10007

SERGEANT JOSE CABAN